

BEFORE THE IOWA BOARD OF BEHAVIORAL SCIENCE

IN RE:	)	CASE NO: 17-0068
Mental Health Counselor License of	)	DIA NO: 19DPH0007
	)	
STACIE LENNETTE (formerly	)	
MITCHELL)	)	
License No. 00967	)	FINDINGS OF FACT,
	)	CONCLUSIONS OF LAW,
RESPONDENT	)	DECISION AND ORDER

On December 13, 2018, the Iowa Board of Behavioral Science (the Board) conducted a hearing on the reinstatement request filed by Stacie Lennette, formerly Stacie Mitchell (the Respondent). The following Board members presided at the hearing: Chairperson Erik Oostenink; Vice-Chairperson Donald Gilbert; Wade Leuwerke; Amy Crow Sunleaf; Jeff Kerber; Jill Struyk; and Sherill Whisenand. Also attending were Board Executive Tony Alden, Assistant Vicky Winter-Clearman and Bureau Chief Michael Marshall. Administrative Law Judge Carla J. Hamborg assisted the Board in conducting the hearing. Assistant Attorney General Laura Steffensmeier represented the State of Iowa. The Respondent appeared on her own behalf and was not represented.

The hearing was closed to the public at the Respondent's election, pursuant to Iowa Code section 272C.6(1), and was recorded by certified court reporter Theresa Kenkel. After hearing the testimony and examining the exhibits, the Board convened in closed executive session, pursuant to Iowa Code section 21.5(1)(f), to deliberate its decision. The Board directed the administrative law judge to draft the Board's written decision, consistent with the deliberations, for Board review and approval.

THE RECORD

The evidentiary record includes the Respondent's testimony and State Exhibits 1-8, which were admitted into evidence without objection.

FINDINGS OF FACT

Stacie Lennette has worked in the mental health field since receiving her undergraduate degree in 1996. The Respondent obtained her license to practice in Iowa as a mental health counselor in 2006, while working as a forensic interviewer. In 2007, she began working as an outpatient therapist at Tanager Place Clinic in Cedar Rapids, Iowa. While at Tanager, Ms. Lennette received several promotions--first to lead therapist and ultimately to clinician supervisor. These latter roles required her to supervise other therapists and interns, in addition to providing therapy to Tanager clients.

In late July 2015, the Respondent was working as a supervisor in an outpatient clinic when she was asked to help a father (Client X) and his daughter "re-unify." Client X had been prohibited from seeing his daughter following a confirmed finding by the Iowa Department of Human Services that he had sexually abused his daughter. This allegation subsequently was proven to be false, and Client X ultimately was awarded full custody of his daughter and two sons.

Although Ms. Lennette considered the daughter to be her primary client, she also counseled Client X as he attempted to re-establish his relationship with his daughter. According to the Respondent, Client X ceased participating in the counseling sessions as of February or March 2016. Ms. Lennette continued to provide therapy to his daughter until August 2016.

Ms. Lennette left Tanager Place Clinic in October 2016, and went into private practice. In December 2016, Client X contacted the Respondent and told her his daughter missed spending time with her. Client X asked Ms. Lennette to stop by his home for a visit. The Respondent agreed, and went to the family home later that month to meet briefly with the daughter.

A short time later, Client X contacted the Respondent again. The Respondent went to the home on several more occasions. The meetings led to a romantic and ultimately, sexual, relationship. The Respondent and Client X married in September 2017. They now reside with Client X's children in the State of Washington.

Meanwhile, information regarding the relationship was brought to the attention of the Board. On May 17, 2017, the Respondent and the Board entered into a combined Statement of Charges, Settlement Agreement and Final Order. Pursuant to that Agreement, Ms. Lennette agreed to voluntarily surrender her license to practice as a mental health counselor in Iowa and agreed that she would need to meet certain requirements prior to seeking reinstatement.

On October 18, 2018, the Board received from Ms. Lennette an application for reinstatement. In support of her application, the Respondent stated that, pursuant to the Settlement Agreement, she had immediately surrendered her license, and had waited more than one year to submit her application. Additionally, she underwent a mental health and boundaries evaluation by Christian A. Carson, Ph.D., ABPP. Dr. Carson had been pre-approved by the Board to conduct the evaluation, and had received the Respondent's file for review.

Dr. Carson met with the Respondent on March 6, 2018, May 24, 2018 and August 17, 2018. His evaluation consisted of a clinical diagnostic interview and mental status examination, objective testing and a review of records and collateral data. He also interviewed Ms. Lennette's personal physician, her former supervisor at Tanager, and a close friend and colleague.

Significantly, Dr. Carson noted that Ms. Lennette understood there was an "ethical problem" when she began her relationship with Client X, and understood it was possible the relationship could be harmful to the children. The Respondent told Dr. Carson she discussed the "dilemma" with her family and best friend, but did not discuss the issue with her supervisor. She also admitted to Dr. Carson she was not honest about the relationship with some of her friends.

Dr. Carson nevertheless concluded that the risk the Respondent would engage in similar behavior in the future was low, based in part on her strong family background, show of remorse, past professionalism and lack of a history of other incidents. According to Dr. Carson:

Ms. Lennette acted in this singular incident out of deep feelings generated in her relationship with [Client X]. No indications of faulty personality structures or relationship impairments appear to be present. The issue has been acknowledged and addressed. The resolution of the issue is that she is now married to [Client X] and has created a stable life in Washington State. Based on an analysis of risk and protective factors, the likelihood of any repeat behavior is extremely low. No psychological diagnoses are indicated. No protective measures are suggested should she return to practice.

Exh. 5 at 4.

The Respondent testified in the December 1, 2018 hearing that she takes full responsibility for her conduct. Ms. Lennette stated she was aware of the ethical implications of her behavior—as well as the potential impact on her career--when she began the personal relationship with Client X. She held many discussions with him and her parents and sister about whether to continue the relationship.

Ms. Lennette further stated that she had never crossed a client boundary prior to meeting Client X. The Respondent believes she was particularly vulnerable during the time period at issue due to her father's health issues and her realization that her parents were aging.

When asked during the hearing, the Respondent indicated she did not seek therapy after surrendering her license because she did not see a need at that time. She stated she engaged in significant “personal exploration” while training to be a supervisor earlier in her career. Ms. Lennette believes that people who know her and have worked with her understand that her relationship with Client X was unique. Although the unique circumstances do not excuse the behavior, the Respondent nevertheless is confident she will not cross another client boundary in the future.

CONCLUSIONS OF LAW

The Board of Behavioral Science is authorized to license marital and family therapists and mental health counselors in Iowa. 645 Iowa Administrative Code (IAC) 31.6. In the event the Board finds probable cause for taking disciplinary action against a licensee following investigation, the Board shall order that a contested case hearing be commenced. 645 IAC 11.4. The Board has the authority to revoke or suspend a license. 645 IAC 13.1. A contested case may be resolved by informal settlement, which may include a voluntary surrender of a license. 645 IAC 12.1. A licensee whose license has been revoked, suspended or voluntarily surrendered must apply for and receive reinstatement of the license in accordance with the administrative rules. 645 IAC 31.17.

With regard to the reinstatement of a license, 645 IAC 11.31 provides in relevant part:

645-11.31(272C) Reinstatement

11.31(1) Any person whose license to practice has been . . . suspended may apply to the board for reinstatement in accordance with the terms and conditions of the order of . . . suspension,

11.31(2) If the order of . . . suspension did not establish terms and conditions upon which reinstatement might occur, or if the license was voluntarily surrendered, an initial application may not be made until one year has elapsed from the date of the order or the date of the voluntary surrender.

. . . .

11.31(4) An application for reinstatement shall allege facts which, if established, will be sufficient to enable the board to determine that the basis for the . . . suspension of the respondent's license no longer exists and that it will be in the public interest for the license to be reinstated. The burden of proof to establish such facts shall be on the respondent.

11.31(5) An order denying or granting reinstatement shall be based upon a decision which incorporates findings of fact and conclusions of law. The order shall be published as provided for in this chapter.

645 IAC 11.31.

The Respondent's long history of professionalism and good work within the Iowa mental health community is impressive. Nevertheless, after considering the record as a whole, the Board must deny the Respondent's application for reinstatement. First and foremost, the Board is deeply concerned by the possibility that Ms. Lennette may be in violation of a Board ethical rule immediately upon reinstatement. This rule provides as follows:

A licensee shall not engage in sexual activities or sexual contact with a former client within the five years following termination of the client relationship. A licensee shall not engage in sexual activities or sexual contact with a former client, regardless of the length of time elapsed since termination of the client relationship, if the client has a history of physical, emotional, or sexual abuse or if the client has ever been diagnosed with any form of psychosis or personality disorder or if the client is likely to remain in need of therapy due to the intensity or chronicity of a problem.

645 IAC 33.2(30)(b).

The Respondent last counseled Client X in early 2016, and therefore remains within the five-year prohibition period established under the rule. Even assuming five years had

elapsed, however, the rule imposes a lifetime ban on engaging in a sexual relationship with a client if the client has a history of abuse, “or if the client has ever been diagnosed with any form of psychosis or personality disorder or if the client is likely to remain in need of therapy due to the intensity or chronicity of a problem.” Here, the Respondent has failed to produce evidence sufficient to ensure Client X’s mental health history does not give rise to a lifetime ban. Her assertion that she and Client X discussed the potential ethical concerns and the impact of the relationship on the children is insufficient to meet her burden of proof with regard to Client X’s own emotional health.

In addition, although the Respondent has taken responsibility for her conduct, she has failed to show how the public will be adequately protected from potential similar behavior in the future. The fact the Respondent’s relationship currently is stable does not ensure it always will remain so. The Respondent testified she was fully aware of the ethical implications at the time she entered into the relationship, yet chose to continue the relationship anyway. It is noteworthy the Respondent has not undergone therapy to fully address whether she might be compelled to make a similar decision that compromises boundaries in the future.

Last, in addition to ensuring that the basis for the suspension no longer exists, rule 11.31(4) also requires that an applicant show that reinstatement of the Iowa license is in the public interest. Here, the Respondent stated she and her family are well-settled in the State of Washington, and expressed no plans to return to Iowa in the near future. It therefore follows that the Iowa public would not be impacted—either favorably or unfavorably—by the reinstatement of Ms. Lennette’s Iowa license.

Accordingly, the Respondent has failed to meet her burden to show that the basis for the surrender of her license no longer exists and that it will be in the public interest for her license to be reinstated. Her application must be denied.

DECISION AND ORDER

IT IS THEREFORE ORDERED that Stacie Lennette's application for reinstatement of her mental health counseling is DENIED. At this time, the Board is unable to articulate any conditions under which it would consider reinstating Ms. Lennette's license, noting ethical concerns arising from 645 IAC 33.2(30)(2). In any event, 645 IAC 11.31(2) states that the Respondent may not file an application for reinstatement until a minimum period of one year has elapsed from the date of this Decision and Order. The burden of proof will be on the Respondent to establish that the reason for the revocation of her license no longer exists and that it is in the public interest for her license to be reinstated.

Dated this 23rd day of January, 2019.

A handwritten signature in cursive script that reads "Tony Alden".

Tony Alden, Board Executive for
Iowa Board of Behavioral Science

cc: Laura Steffensmeier, Assistant Attorney General

Pursuant to Iowa Code section 17A.19 (2017) and 645 IAC 11.29, any appeal to the district court from a decision in a contested case shall be taken within 30 days from the issuance of the decision by the Board. The appealing party shall pay the full costs for the transcript of the hearing. 645 IAC 11.23.